

IP FONG

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C.H.

TICKET
232

AGE

27

Note:

Correct Date of
Arrival 12/31/96

SEX

CITIZEN OF

CHINA

DATE OF ARRIVAL

JAN.1,1897

NAME OF SHIP

S.S.COPTIC

FROM

HONGKONG

TRADE

PLANTER

§ 36.4392 Certification requirements.

In any case in which §§ 36.4390 through 36.4393 are applicable, as set forth in § 36.4391, no action will be taken by the Department of Veterans Affairs on any request for appraisal relating to proposed construction, site approval of land to be improved by a builder, sponsor or developer for the construction of housing thereon, or for a direct loan fund reservation commitment unless the builder, sponsor or developer has furnished the Department of Veterans Affairs a signed certification in form as follows:

To induce the Department of Veterans Affairs to act on any request submitted by or on behalf of the undersigned for site approval of land to be improved for the construction of housing thereon to be financed with loans guaranteed, insured or made by the Department of Veterans Affairs, or for establishment by the Department of Veterans Affairs of reasonable value relating to proposed construction or for direct loan fund reservation commitments, the undersigned hereby agrees that it will incorporate or cause to be incorporated into any contract for construction work or modification thereof, as defined in the rules and regulations of the Secretary of Labor relating to the land or housing included in its request to the Department of Veterans Affairs the following equal opportunity clause:

During the performance of this contract the contractor agrees as follows:

(1) The contractor will not discriminate against any employee or applicant for employment because of race, color, religion, sex or national origin. The contractor will take affirmative action to ensure that applicants are employed, and that employees are treated during employment without regard to their race, color, religion, sex or national origin. Such action shall include, but not be limited to the following: Employment, upgrading, demotion or transfer; recruitment or recruitment advertising; layoff or termination; rates of pay or other forms of compensation; and selection for training, including apprenticeship. The contractor agrees to post in conspicuous places, available to employees and applicants for employment, notices to be provided setting forth the provisions of this nondiscrimination clause.

(2) The contractor will, in all solicitations or advertisements for employees placed by or on behalf of the contractor, state that all qualified applicants will receive consideration for employment without regard to race, color, religion, sex or national origin.

(3) The contractor will send to each labor union or representative of workers with which he has a collective bargaining agree-

ment or other contract or understanding, a notice to be provided advising the said labor union or workers' representative of the contractor's commitments under section 202 of Executive Order 11246 of September 24, 1965, and shall post copies of the notice in conspicuous places available to employees and applicants for employment.

(4) The contractor will comply with all provisions of Executive Order 11246 of September 24, 1965, and of the rules, regulations and relevant orders of the Secretary of Labor.

(5) The contractor will furnish all information and reports required by Executive Order 11246 of September 24, 1965, and by the rules, regulations and orders of the Secretary of Labor, or pursuant thereto, and will permit access to his books, records and accounts by the administering agency and the Secretary of Labor for purposes of investigation to ascertain compliance with such rules, regulations and orders.

(6) In the event of the contractor's non-compliance with the nondiscrimination clauses of this contract or with any of the said rules, regulations or orders, this contract may be canceled, terminated or suspended in whole or in part and the contractor may be declared ineligible for further Government contracts or federally assisted construction contracts in accordance with procedures authorized in Executive Order 11246 of September 24, 1965, and such other sanctions may be imposed and remedies invoked as provided in Executive Order 11246 of September 24, 1965, or by rule, regulation or order of the Secretary of Labor, or as otherwise provided by law.

(7) The contractor will include the provisions of paragraphs (1) through (7) in every subcontract or purchase order unless exempted by rules, regulations or orders of the Secretary of Labor issued pursuant to section 204 of Executive Order 11246 of September 24, 1965, so that such provisions will be binding upon each subcontractor or vendor. The contractor will take such action with respect to any subcontract or purchase order as the administering agency may direct as a means of enforcing such provisions, including sanctions for noncompliance: *Provided, however*, That in the event a contractor becomes involved in, or is threatened with, litigation with a subcontractor or vendor as a result of such direction by the agency, the contractor may request the United States to enter into such litigation to protect the interests of the United States.

Except in special cases and in subcontracts for the performance of construction work at the site of construction, the clause is not required to be inserted in subcontracts below the second tier. Subcontracts may incorporate by reference the equal opportunity clause.

Department of Veterans Affairs

§ 36.4393

The undersigned further agrees that it will be bound by the above equal opportunity clause in any federally assisted construction work which it performs itself other than through the permanent work force directly employed by an agency of Government.

The undersigned agrees that it will cooperate actively with the administering agency and the Secretary of Labor in obtaining the compliance of contractors and subcontractors with the equal opportunity clause and the rules, regulations and relevant orders of the Secretary of Labor, that it will furnish the administering agency and the Secretary of Labor such information as they may require for the supervision of such compliance, and that it will otherwise assist the administering agency in the discharge of the agency's primary responsibility for securing compliance. The undersigned further agrees that it will refrain from entering into any contract or contract modification subject to Executive Order 11246 with a contractor debarred from, or who has not demonstrated eligibility for, Government contracts and federally assisted construction contracts pursuant to Part II, Subpart D of Executive Order 11246 and will carry out such sanctions and penalties for violation of the equal opportunity clause as may be imposed upon the contractors and subcontractors by the administering agency or the Secretary of Labor pursuant to Part II, Subpart D of Executive Order 11246.

In addition, the undersigned agrees that if it fails or refuses to comply with these undertakings such failure or refusal shall be a proper basis for cancellation by the Department of Veterans Affairs of any outstanding master certificates of reasonable value or individual certificates of reasonable value relating to proposed construction, except in respect to cases in which an eligible veteran has contracted to purchase a property included on such certificates, and for the rejection of future requests submitted by the undersigned or on his or her behalf for site approval, appraisal services, and direct loan fund reservation commitments until satisfactory assurance of future compliance has been received from the undersigned, and for referral of the case to the Department of Justice for appropriate legal proceedings.

[31 FR 8745, June 24, 1966, as amended at 40 FR 34596, Aug. 18, 1975]

§ 36.4393 Complaint and hearing procedure.

(a) Upon receipt of a written complaint signed by the complainant to the effect that any person, firm or entity has violated the undertakings referred to in § 36.4392, such person, firm or other entity shall be invited to discuss the matter in an informal hearing

with the Director of the Department of Veterans Affairs regional office or center.

(b) If the existence of a violation is denied by the person, firm or other entity against which a complaint has been made, the Director or designee shall conduct such inquiries and hearings as may be deemed appropriate for the purpose of ascertaining the facts.

(c) If it is found that the person, firm or other entity against which a complaint has been made has not violated the undertakings referred to in § 36.4392, the parties shall be so notified.

(d) If it is found that there has been a violation of the undertakings referred to in § 36.4392, the person, firm or other entity in violation shall be requested to attend a conference for the purpose of discussing the matter. Failure or refusal to attend such a conference shall be proper basis for the application of sanctions.

(e) The conference arranged for discussing a violation shall be conducted in an informal manner and shall have as its primary objective the elimination of the violation. If the violation is eliminated and satisfactory assurances are received that the person, firm or other entity in violation will comply with the undertakings pursuant to § 36.4392 in the future, the parties concerned shall be so notified.

(f) Failure or refusal to comply and give satisfactory assurances of future compliance with the equal employment opportunity requirements shall be proper basis for applying sanctions. The sanctions shall be applied in accordance with the provisions of Executive Order 11246 as amended and the regulations of the Secretary of Labor.

(g) Upon written application, a complainant or a person, firm or other entity against which a complaint has been filed may apply to the Under Secretary for Benefits for a review of the action taken by a Director. Upon receiving such application, the Under Secretary for Benefits may designate a representative or representatives to conduct an informal hearing and to make a report of findings. The Under Secretary for Benefits may, after a review of such report, modify or reverse an action taken by a Director.

9/12/2011 at 2:58:26 PM

Credential Number	Name	DBA	Address	City	State	Zip	First Issuance Date	Expiration Date
MT.2047	ADP Payroll Services, Inc.		One ADP Blvd. M/S 443	Roseland	NJ	7068	09/01/2009	06/30/2012
MT.2045	Amazon Payments, Inc.		410 Terry Avenue N	Seattle	WA	98109	07/31/2009	06/30/2012
MT.2053	American Express Prepaid Card Management Corp.		20022 North 31st Avenue	Phoenix	AZ	85027	07/29/2010	06/30/2012
MT.1001	American Express Travel Related Services Co. Inc.		200 Vesey Street	New York	NY	10285	07/01/1973	06/30/2012
MT.2056	Bancomer Transfer Services, Inc.		16825 Northchase Drive, Suite 1525	Houston	TX	77060	12/16/2010	06/30/2012
MT.2049	Blackhawk Network California, Inc.		6220 Stoneridge Mall Road	Pleasanton	CA	94588	10/21/2009	06/30/2012
MT.2052	Braz Transfers, Inc.		999 Broadway, Suite 500	Saugus	MA	1906	06/25/2010	06/30/2012
MT.2057	Cambridge Mercantile Corporation (U.S.A.)		902 Carnegie Center, Suite 340	Princeton	NJ	8540	01/20/2011	06/30/2012
MT.2019	CheckFreePay Corporation		15 Sterling Drive	Wallingford	CT	06492-7544	03/25/2003	06/30/2012
MT.2020	Coborn's Incorporated		1445 East Highway 23	St. Cloud	MN	56304	05/10/2004	06/30/2012
MT.2003	Comdata Network Inc.	dba Comdata Corporation	5301 Maryland Way	Brentwood	TN	37027	07/01/1987	06/30/2012
MT.2030	Continental Exchange Solutions, Inc.	dba RIA Financial Services; Associated Foreign Exchange	6565 Knott Avenue	Buena Park	CA	90620	07/19/2006	06/30/2012
MT.2027	Custom House (USA) Ltd.	Western Union Business Solutions	517 Fort Street	Victoria	BC	V8W 1E7	04/01/2005	06/30/2012
MT.2035	Dahab-Shil, Inc.		2025 Nicollet Ave South # 206	Minneapolis	MN	55404	02/21/2007	06/30/2012
MT.2055	DLC Empire Prepaid Cards, LLC		901 West 10th Street	Sioux Falls	SD	57104	11/02/2010	06/30/2012
MT.2059	Facebook Payments Inc.		1601 S. California Avenue	Palo Alto	CA	94304	08/08/2011	06/30/2012
MT.2048	Global Cash Access, Inc. (GCA)		3525 E. Post Road, Suite 120	Las Vegas	NV	89120	10/13/2009	06/30/2012
MT.2050	Golden Money Transfer, Inc.		517 4th Avenue, Suite 103	San Diego	CA	92101	03/08/2010	06/30/2012
MT.2042	Google Payment Corp.	dba Google Checkout	1600 Amphitheatre Parkway	Mountain View	CA	94043	04/14/2009	06/30/2012
MT.2023	Green Dot Corporation		605 East Huntington Drive, Suite 205	Monrovia	CA	91016	12/02/2004	06/30/2012
MT.2010	Integrated Payment Systems Inc.		6200 S Quebec Street, Ste 260	Greenwood Village	CO	80111	08/19/1993	06/30/2012
MT.2025	ITC Financial Licenses, Inc.		5617 Princeton Avenue, Suite B	Columbus	GA	30303	01/21/2005	06/30/2012
MT.2051	Moneybookers USA, Inc.		61 Broadway, Suite 1603	New York	NY	10006	05/28/2010	06/30/2012
MT.2012	MoneyGram Payment Systems, Inc.		1550 Utica Avenue South	Minneapolis	MN	55416	02/18/1997	06/30/2012
MT.2041	nFinanSe Payments Inc.		3923 Coconut Palm Drive, Suite 107	Tampa	FL	33619	01/28/2008	06/30/2012
MT.2046	NoteWorld LLC	NoteWorld Servicing Center	1001 Pacific Avenue, Suite 200	Tacoma	WA	98402	09/01/2009	06/30/2012
MT.2039	Obopay, Inc.		350 Marine Parkway, Suite 100	Redwood City	CA	94065	09/21/2007	06/30/2012
MT.2043	Official Payments Corporation		11130 Sunrise Valley Drive, Suite 300	Reston	VA	20191	05/20/2009	06/30/2012
MT.2038	Paypal, Inc.		2211 North First Street	San Jose	CA	95131	07/30/2007	06/30/2012
MT.2029	PreCash, Inc.		1800 West Loop South, Suite 1400	Houston	TX	77027	07/19/2006	06/30/2012
MT.2018	Sigue Corporation		13291 Ralston Ave.	Sylmar	CA	91342-7676	09/30/2002	06/30/2012
MT.2060	Softgate Systems, Inc.		330 Passaic Avenue	Fairfield	NJ	7004	08/16/2011	06/30/2012
MT.2058	Tempus Consulting, Inc.		1225 New York Avenue NW, Suite 200	Washington	DC	20005	06/07/2011	06/30/2012
MT.2011	Travelex Currency Services Inc.		100 Yonge Street, 14th Floor, Scotia Plaza	Ontario		M5C 2W1	10/16/1995	06/30/2012
MT.2054	Travelex Global Business Payments, Inc.		1152 15th Street NW, 7th Floor	Washington	DC	20005	09/14/2010	06/30/2012
MT.2004	Western Union Financial Services, Inc.		12500 East Belford Avenue, Suite M12K3	Englewood	CO	80112	10/19/1989	06/30/2012
MT.2044	Xoom Corporation		100 Bush Street, Suite 300	San Francisco	CA	94104	06/24/2009	06/30/2012

37 Items Found

under Executive Order 13132. This proposed AD would not have a substantial direct effect on the States, on the relationship between the national Government and the States, or on the distribution of power and responsibilities among the various levels of government.

For the reasons discussed above, I certify this proposed regulation:

1. Is not a "significant regulatory action" under Executive Order 12866;
2. Is not a "significant rule" under the DOT Regulatory Policies and Procedures (44 FR 11034, February 26, 1979); and
3. Will not have a significant economic impact, positive or negative, on a substantial number of small entities under the criteria of the Regulatory Flexibility Act.

We prepared a regulatory evaluation of the estimated costs to comply with this proposed AD and placed it in the AD docket.

List of Subjects in 14 CFR Part 39

Air transportation, Aircraft, Aviation safety, Safety.

The Proposed Amendment

Accordingly, under the authority delegated to me by the Administrator, the FAA proposes to amend 14 CFR part 39 as follows:

PART 39—AIRWORTHINESS DIRECTIVES

1. The authority citation for part 39 continues to read as follows:

Authority: 49 U.S.C. 106(g), 40113, 44701.

§ 39.13 [Amended]

2. The FAA amends § 39.13 by adding the following new AD:

Grob-Werke GmbH & Co Kg: Docket No. FAA-2007-28670; Directorate Identifier 2007-CE-060-AD.

Comments Due Date

(a) We must receive comments by October 19, 2007.

Affected ADs

(b) None.

Applicability

(c) This AD applies to the gliders Model G102 CLUB ASTIR III, serial numbers (SNs) 5501 (suffix C) through 5652 (suffix C); Model G102 CLUB ASTIR IIIB, SNs 5501 (suffix Cb) through 5652 (suffix Cb); and Model G102 STANDARD ASTIR III, SNs 5501 (suffix S) through 5652 (suffix S), that are certificated in any category.

Subject

(d) Air Transport Association of America (ATA) Code 27: Flight Controls.

Reason

(e) The mandatory continuing airworthiness information (MCAI) states:

GROB received isolated difficulty reports regarding cracks on welded parts of the flight control system of the type G102, model CLUB ASTIR III & IIIB, and STANDARD ASTIR III. The cracks progress slowly from the welding seams periphery, and may eventually result in rupture at a matured stage.

The MCAI requires all welded parts to be inspected and replaced if any cracks are found.

Actions and Compliance

(f) Unless already done, do the following actions:

(1) Within the next 25 hours time-in-service (TIS) after the effective date of this AD or within the next 6 calendar months after the effective date of this AD, whichever occurs first, inspect the welded parts of the flight control system for any cracks, deformations, or distortions following Grob Aerospace Service Bulletin No. MSB 306-35, dated April 27, 2007. Thereafter, repetitively inspect at intervals not to exceed 12 calendar months.

(2) If you find any cracks, deformations, or distortions as a result of any inspection required by paragraph (e)(1) of this AD, before further flight, replace the affected part following Grob Aerospace Service Bulletin No. MSB 306-35, dated April 27, 2007.

FAA AD Differences

Note: This AD differs from the MCAI and/or service information as follows: No differences.

Other FAA AD Provisions

(g) The following provisions also apply to this AD:

(1) Alternative Methods of Compliance (AMOCs): The Manager, Standards Office, FAA, has the authority to approve AMOCs for this AD, if requested using the procedures found in 14 CFR 39.19. Send information to ATTN: Greg Davison, Glider Program Manager, FAA, Small Airplane Directorate, 901 Locust, Room 301, Kansas City, Missouri 64106; telephone: (816) 329-4130; fax: (816) 329-4090. Before using any approved AMOC on any airplane to which the AMOC applies, notify your appropriate principal inspector (PI) in the FAA Flight Standards District Office (FSDO), or lacking a PI, your local FSDO.

(2) Airworthy Product: For any requirement in this AD to obtain corrective actions from a manufacturer or other source, use these actions if they are FAA-approved. Corrective actions are considered FAA-approved if they are approved by the State of Design Authority (or their delegated agent). You are required to assure the product is airworthy before it is returned to service.

(3) Reporting Requirements: For any reporting requirement in this AD, under the provisions of the Paperwork Reduction Act (44 U.S.C. 3501, et seq.), the Office of Management and Budget (OMB) has approved the information collection requirements and has assigned OMB Control Number 2120-0056.

Related Information

(h) Refer to MCAI European Aviation Safety Agency (EASA) Emergency AD No.:

2007-0135-E, dated May 14, 2007, and Grob Aerospace Service Bulletin No. MSB 306-35, dated April 27, 2007, for related information.

Issued in Kansas City, Missouri, on September 13, 2007.

Kim Smith,

Manager, Small Airplane Directorate, Aircraft Certification Service.

[FR Doc. E7-18443 Filed 9-18-07; 8:45 am]

BILLING CODE 4910-13-P

DEPARTMENT OF TRANSPORTATION

Federal Aviation Administration

14 CFR Part 39

[Docket No. FAA-2007-29226; Directorate Identifier 2006-NM-256-AD]

RIN 2120-AA64

Airworthiness Directives; McDonnell Douglas Model DC-9-81 (MD-81) and DC-9-82 (MD-82) Airplanes

AGENCY: Federal Aviation Administration (FAA), Department of Transportation (DOT).

ACTION: Notice of proposed rulemaking (NPRM).

SUMMARY: The FAA proposes to adopt a new airworthiness directive (AD) for certain McDonnell Douglas Model DC-9-81 (MD-81) and DC-9-82 (MD-82) airplanes. This proposed AD would require, for certain airplanes, inspecting for cracking of the fuselage skin at the upper corners of the forward passenger doorjamb, installing or replacing doublers as applicable, and doing applicable repairs. This proposed AD results from reports of fatigue cracking in the fuselage skin at the upper corners of the forward passenger doorjamb. We are proposing this AD to prevent cracking of the fuselage skin at the upper corners of the forward passenger doorjamb, which could lead to loss of overall structural integrity of the airplane.

DATES: We must receive comments on this proposed AD by November 5, 2007.

ADDRESSES: Use one of the following addresses to submit comments on this proposed AD.

- **DOT Docket Web site:** Go to <http://dms.dot.gov> and follow the instructions for sending your comments electronically.

- **Government-wide rulemaking Web site:** Go to <http://www.regulations.gov> and follow the instructions for sending your comments electronically.

- **Mail:** U.S. Department of Transportation, Docket Operations, M-30, West Building Ground Floor, Room

W12-140, 1200 New Jersey Avenue, SE., Washington, DC 20590.

• *Fax:* (202) 493-2251.

• *Hand Delivery:* Room W12-140 on the ground floor of the West Building, 1200 New Jersey Avenue, SE., Washington, DC, between 9 a.m. and 5 p.m., Monday through Friday, except Federal holidays.

Contact Boeing Commercial Airplanes, Long Beach Division, 3855 Lakewood Boulevard, Long Beach, California 90846, Attention: Data and Service Management, Dept. C1-L5A (D800-0024), for the service information identified in this proposed AD.

FOR FURTHER INFORMATION CONTACT:

Roger Durbin, Aerospace Engineer, Airframe Branch, ANM-120L, FAA, Los Angeles Aircraft Certification Office, 3960 Paramount Boulevard, Lakewood, California 90712-4137; telephone (562) 627-5233; fax (562) 627-5210.

SUPPLEMENTARY INFORMATION:

Comments Invited

We invite you to submit any relevant written data, views, or arguments regarding this proposed AD. Send your comments to an address listed in the **ADDRESSES** section. Include the docket number "FAA-2007-29226; Directorate Identifier 2006-NM-256-AD" at the beginning of your comments. We specifically invite comments on the overall regulatory, economic, environmental, and energy aspects of the proposed AD. We will consider all comments received by the closing date and may amend the proposed AD in light of those comments.

We will post all comments we receive, without change, to <http://dms.dot.gov>, including any personal information you provide. We will also post a report summarizing each substantive verbal contact with FAA personnel concerning this proposed AD. Using the search function of that Web site, anyone can find and read the comments in any of our dockets, including the name of the individual who sent the comment (or signed the comment on behalf of an association, business, labor union, etc.). You may review DOT's complete Privacy Act Statement in the **Federal Register** published on April 11, 2000 (65 FR 19477-78), or you may visit <http://dms.dot.gov>.

Examining the Docket

You may examine the AD docket on the Internet at <http://dms.dot.gov>, or in person at the Docket Operations office between 9 a.m. and 5 p.m., Monday through Friday, except Federal holidays. The Docket Operations office (telephone

(800) 647-5527) is located on the ground level of the West Building at the DOT street address stated in the **ADDRESSES** section. Comments will be available in the AD docket shortly after the Docket Management System receives them.

Discussion

We have received a report that fatigue cracking has been discovered in the fuselage skin at the upper corners of the forward passenger doorjamb on certain Model DC-9/MD-80 airplanes. This condition, if not corrected, could lead to loss of overall structural integrity of the airplane.

Relevant Service Information

We have reviewed Boeing Alert Service Bulletin MD80-53A298, dated August 1, 2006. The alert service bulletin describes procedures for a low-frequency eddy current (LFEC) or a high-frequency eddy current (HFEC) inspection, depending on airplane configuration, for cracking of the fuselage skin at the upper corners of the forward passenger doorjamb; and applicable corrective actions. The compliance time for the initial inspection is before accumulating 37,500 total flight cycles, or within 3,575 flight cycles (whichever is later).

The corrective actions include:

- For Group 1, Configuration 1, airplanes on which no cracking is found: Either repeating the LFEC inspection at intervals of 3,575 flight cycles; or installing external aluminum doublers within 3,575 flight cycles after the last inspection, and doing an HFEC inspection within 28,000 flight cycles after doing the installation, and repetitively at 20,000-flight-cycle intervals.

- For Group 1, Configuration 1, airplanes on which any crack is found that is 2.0 inches or shorter in length: Repair before further flight, and do an HFEC inspection within 28,000 flight cycles after the repair, and repetitively at 20,000-flight-cycle intervals.

- For Group 1, Configuration 1, airplanes on which any crack is found that is longer than 2.0 inches; for Group 1, Configurations 2 and 3, airplanes on which any crack is found beyond the edge of the doublers; and for Group 1, Configuration 4, airplanes: Contact Boeing for repair instructions before further flight.

- For Group 1, Configuration 2, airplanes on which no crack is found beyond the edge of the steel doublers: Replace existing steel doublers with aluminum doublers, and repair upper corners within 6,000 flight cycles after

the initial inspection; and do an HFEC inspection within 28,000 flight cycles after the repair, and repetitively at 20,000-flight-cycle intervals.

- For Group 1, Configuration 3, airplanes on which no cracks are found beyond the edge of the aluminum doublers: Repeat the HFEC inspection at 20,000-flight-cycle intervals.

Accomplishing the actions specified in the service information is intended to adequately address the unsafe condition.

FAA's Determination and Requirements of the Proposed AD

We have evaluated all pertinent information and identified an unsafe condition that is likely to exist or develop on other airplanes of this same type design. For this reason, we are proposing this AD, which would require accomplishing the actions specified in the service information described previously, except as discussed under "Differences Between Proposed AD and Alert Service Bulletin."

Differences Between Proposed AD and Alert Service Bulletin

For all airplanes, the alert service bulletin specifies to contact the manufacturer for instructions on how to repair certain conditions, but this proposed AD would require repairing those conditions in one of the following ways:

- Using a method that we approve; or
- Using data that meet the certification basis of the airplane, and that have been approved by an Authorized Representative for the Boeing Commercial Airplanes Delegation Option Authorization Organization whom we have authorized to make those findings.

For airplane configuration 4: Where the alert service bulletin specifies to contact the manufacturer for repair instructions before further flight, to avoid unnecessarily grounding airplanes, this proposed AD would require performing repairs within 90 days after the effective date of this proposed AD.

Costs of Compliance

There are about 76 airplanes of the affected design in the worldwide fleet. This proposed AD would affect about 46 airplanes of U.S. registry. The following table provides the estimated costs for U.S. operators to comply with this proposed AD, at an average labor rate of \$80 per work hour. The proposed actions vary depending upon the airplane configuration.

ESTIMATED COSTS

Action	Work hours	Parts	Cost per airplane	Fleet cost
LFEC inspection	1	None needed	\$80, per inspection cycle	Up to \$3,680, per inspection cycle.
HFEC inspection	1	None needed	\$80, per inspection cycle	Up to \$3,680, per inspection cycle.

Authority for This Rulemaking

Title 49 of the United States Code specifies the FAA's authority to issue rules on aviation safety. Subtitle I, Section 106, describes the authority of the FAA Administrator. Subtitle VII, Aviation Programs, describes in more detail the scope of the Agency's authority.

We are issuing this rulemaking under the authority described in Subtitle VII, Part A, Subpart III, Section 44701, "General requirements." Under that section, Congress charges the FAA with promoting safe flight of civil aircraft in air commerce by prescribing regulations for practices, methods, and procedures the Administrator finds necessary for safety in air commerce. This regulation is within the scope of that authority because it addresses an unsafe condition that is likely to exist or develop on products identified in this rulemaking action.

Regulatory Findings

We have determined that this proposed AD would not have federalism implications under Executive Order 13132. This proposed AD would not have a substantial direct effect on the States, on the relationship between the national Government and the States, or on the distribution of power and responsibilities among the various levels of government.

For the reasons discussed above, I certify that the proposed regulation:

1. Is not a "significant regulatory action" under Executive Order 12866;
2. Is not a "significant rule" under the DOT Regulatory Policies and Procedures (44 FR 11034, February 26, 1979); and
3. Will not have a significant economic impact, positive or negative, on a substantial number of small entities under the criteria of the Regulatory Flexibility Act.

We prepared a regulatory evaluation of the estimated costs to comply with this proposed AD and placed it in the AD docket. See the **ADDRESSES** section for a location to examine the regulatory evaluation.

List of Subjects in 14 CFR Part 39

Air transportation, Aircraft, Aviation safety, Safety.

The Proposed Amendment

Accordingly, under the authority delegated to me by the Administrator, the FAA proposes to amend 14 CFR part 39 as follows:

PART 39—AIRWORTHINESS DIRECTIVES

1. The authority citation for part 39 continues to read as follows:

Authority: 49 U.S.C. 106(g), 40113, 44701.

§ 39.13 [Amended]

2. The Federal Aviation Administration (FAA) amends § 39.13 by adding the following new airworthiness directive (AD):

McDonnell Douglas: Docket No. FAA-2007-29226; Directorate Identifier 2006-NM-256-AD.

Comments Due Date

- (a) The FAA must receive comments on this AD action by November 5, 2007.

Affected ADs

- (b) None.

Applicability

- (c) This AD applies to McDonnell Douglas Model DC-9-81 (MD-81) and DC-9-82 (MD-82) airplanes; certificated in any category; as identified in Boeing Alert Service Bulletin MD80-53A298, dated August 1, 2006.

Unsafe Condition

- (d) This AD results from a report of fatigue cracking in the fuselage skin at the upper corners of the forward passenger doorjamb. We are issuing this AD to prevent cracking of the fuselage skin at the upper corners of the forward passenger doorjamb, which could lead to loss of overall structural integrity of the airplane.

Compliance

- (e) You are responsible for having the actions required by this AD performed within the compliance times specified, unless the actions have already been done.

Repetitive Inspections and Corrective Actions for Configuration 1, 2, and 3 Airplanes

- (f) For airplanes identified as Configuration 1, 2, or 3 in Boeing Alert Service Bulletin MD80-53A298, dated August 1, 2006: At the applicable times specified in paragraph 1.E., "Compliance," of the alert service bulletin, do a low-frequency eddy current (LFEC) or high-frequency eddy current (HFEC) inspection, as applicable, for cracking of the fuselage skin at the upper corners of the

forward passenger doorjamb; and do all applicable corrective actions (repetitive inspections, installation of doublers, replacements, and repairs), except as provided by paragraph (g) of this AD. Do the actions in accordance with the Accomplishment Instructions of the alert service bulletin. Where the alert service bulletin specifies a compliance time after the date on the service bulletin, this AD requires compliance within the specified compliance time after the effective date of this AD.

Repair of Certain Conditions

- (g) If any crack is found during any inspection required by paragraph (f) of this AD and Boeing Alert Service Bulletin MD80-53A298, dated August 1, 2006, specifies to contact Boeing for repair instructions: Before further flight, repair using a method approved in accordance with the procedures specified in paragraph (i) of this AD.

Corrective Action for Configuration 4 Airplanes

- (h) For airplanes identified as Configuration 4 in Boeing Alert Service Bulletin MD80-53A298, dated August 1, 2006: Within 90 days after the effective date of this AD, repair using a method approved in accordance with the procedures specified in paragraph (i) of this AD.

Alternative Methods of Compliance (AMOCs)

- (i)(1) The Manager, Los Angeles Aircraft Certification Office (ACO), FAA, has the authority to approve AMOCs for this AD, if requested in accordance with the procedures found in 14 CFR 39.19.

- (2) To request a different method of compliance or a different compliance time for this AD, follow the procedures in 14 CFR 39.19. Before using any approved AMOC on any airplane to which the AMOC applies, notify your appropriate principal inspector (PI) in the FAA Flight Standards District Office (FSDO), or lacking a PI, your local FSDO.

- (3) An AMOC that provides an acceptable level of safety may be used for any repair required by this AD, if it is approved by an Authorized Representative for the Boeing Commercial Airplanes Delegation Option Authorization Organization who has been authorized by the Manager, Los Angeles ACO, to make those findings. For a repair method to be approved, the repair must meet the certification basis of the airplane and 14 CFR 25.571, Amendment 45, and the approval must specifically refer to this AD.

Issued in Renton, Washington, on September 10, 2007.

Ali Bahrami,

Manager, Transport Airplane Directorate,
Aircraft Certification Service.

[FR Doc. E7-18447 Filed 9-18-07; 8:45 am]

BILLING CODE 4910-13-P

DEPARTMENT OF TRANSPORTATION

Federal Aviation Administration

14 CFR Part 39

[Docket No. FAA-2007-29227; Directorate Identifier 2007-NM-100-AD]

RIN 2120-AA64

Airworthiness Directives; Boeing Model 747-100, 747-100B, 747-100B SUD, 747-200B, 747-200C, 747-300, 747-400, 747-400D, and 747SR Series Airplanes

AGENCY: Federal Aviation Administration (FAA), Department of Transportation (DOT).

ACTION: Notice of proposed rulemaking (NPRM).

SUMMARY: The FAA proposes to adopt a new airworthiness directive (AD) for certain Boeing Model 747-100, 747-100B, 747-100B SUD, 747-200B, 747-200C, 747-300, 747-400, 747-400D, and 747SR series airplanes. For certain airplanes, this proposed AD would require a material type inspection to determine if the lower forward corner reveal of the number 3 main entry doors (MEDs) is a casting. If the reveals are castings, this proposed AD would require repetitive inspection of the reveals for cracking, and corrective action if necessary. If the reveals are not castings, this proposed AD would require a detailed inspection of the reveals for a sharp edge and repetitive inspection of the reveals for cracking, and corrective action if necessary. For certain other airplanes, this AD would require only a detailed inspection of the reveals for a sharp edge and repetitive inspection of the reveals for cracking, and corrective action if necessary. For certain other airplanes, this AD would require repetitive inspection of the reveals for cracking only, and corrective action if necessary. This proposed AD results from reports of cracking and/or a sharp edge in the lower forward corner reveal of the number 3 MEDs. We are proposing this AD to detect and correct fatigue cracking of the lower forward corner reveal of the number 3 MEDs, which could lead to the door escape slide departing from the airplane when the door is opened and the slide is deployed, and consequent injuries to

passengers and crew using the door escape slide during an emergency evacuation.

DATES: We must receive comments on this proposed AD by November 5, 2007.

ADDRESSES: Use one of the following addresses to submit comments on this proposed AD.

- *DOT Docket Web site:* Go to <http://dms.dot.gov> and follow the instructions for sending your comments electronically.

- *Government-wide rulemaking Web site:* Go to <http://www.regulations.gov> and follow the instructions for sending your comments electronically.

- *Mail:* U.S. Department of Transportation, Docket Operations, M-30, West Building Ground Floor, Room W12-140, 1200 New Jersey Avenue, SE., Washington, DC 20590.

- *Fax:* (202) 493-2251.

- *Hand Delivery:* Room W12-140 on the ground floor of the West Building, 1200 New Jersey Avenue, SE., Washington, DC, between 9 a.m. and 5 p.m., Monday through Friday, except Federal holidays.

Contact Boeing Commercial Airplanes, P.O. Box 3707, Seattle, Washington 98124-2207, for the service information identified in this proposed AD.

FOR FURTHER INFORMATION CONTACT: Ivan Li, Aerospace Engineer, Airframe Branch, ANM-120S, FAA, Seattle Aircraft Certification Office, 1601 Lind Avenue, SW., Renton, Washington 98057-3356; telephone (425) 917-6437; fax (425) 917-6590.

SUPPLEMENTARY INFORMATION:

Comments Invited

We invite you to submit any relevant written data, views, or arguments regarding this proposed AD. Send your comments to an address listed in the **ADDRESSES** section. Include the docket number "FAA-2007-29227; Directorate Identifier 2007-NM-100-AD" at the beginning of your comments. We specifically invite comments on the overall regulatory, economic, environmental, and energy aspects of the proposed AD. We will consider all comments received by the closing date and may amend the proposed AD in light of those comments.

We will post all comments we receive, without change, to <http://dms.dot.gov>, including any personal information you provide. We will also post a report summarizing each substantive verbal contact with FAA personnel concerning this proposed AD. Using the search function of that Web site, anyone can find and read the comments in any of our dockets,

including the name of the individual who sent the comment (or signed the comment on behalf of an association, business, labor union, etc.). You may review DOT's complete Privacy Act Statement in the **Federal Register** published on April 11, 2000 (65 FR 19477-78), or you may visit <http://dms.dot.gov>.

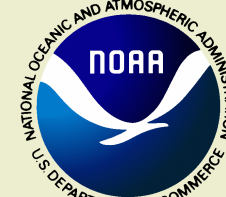
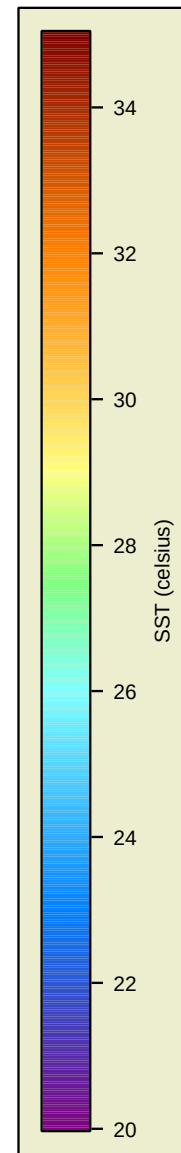
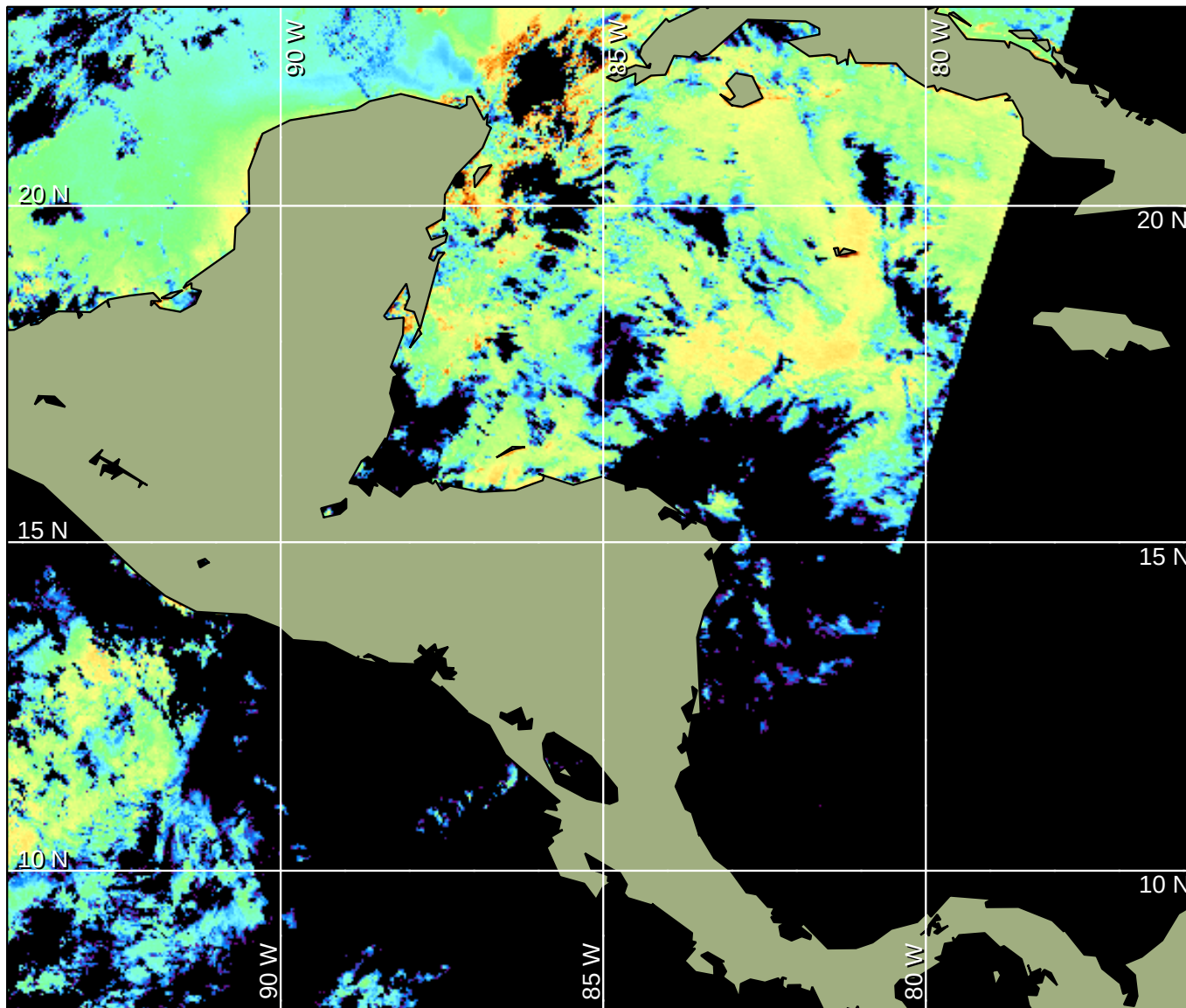
Examining the Docket

You may examine the AD docket on the Internet at <http://dms.dot.gov>, or in person at the Docket Operations office between 9 a.m. and 5 p.m., Monday through Friday, except Federal holidays. The Docket Operations office (telephone (800) 647-5527) is located on the ground floor of the West Building at the DOT street address stated in the **ADDRESSES** section. Comments will be available in the AD docket shortly after the Docket Management System receives them.

Discussion

On June 30, 2004, we issued an NPRM, Docket No. FAA-2004-18583, to address the identified unsafe condition. That NPRM was prompted by reports from eight operators indicating that cracking of the lower forward corner reveal of the number 3 main entry doors (MEDs) was found on several Model 747 airplanes. Of the twelve reveals that were cracked, eleven were made of cast 356 aluminum and one was made of machined 6061 aluminum. The cause of the cracking of the reveals made of cast 356 aluminum is fatigue. The cause of the cracking of the reveal made of machined 6061 aluminum was a manufacturing defect, which led to fatigue cracking.

Subsequent to issuing the NPRM, we have been working with the manufacturer to ensure that the unsafe condition is adequately addressed and appropriate service instructions are available. We have also received new data showing other issues related to the unsafe condition. In addition to the comments received for that NPRM, the data include reports that forward corner reveals installed on certain airplanes have a "sharp edge" detail at the forward edge, which could lead to fatigue cracking, and that additional airplanes are affected by the identified unsafe condition. We have determined from these data that the corrective actions proposed by that NPRM are inadequate for addressing the identified unsafe condition; therefore, we have withdrawn that NPRM and are issuing this new proposed AD.



Data courtesy of:
USDOC/NOAA/NESDIS
CoastWatch

Satellite:
METOP-1
Sensor:
AVHRR
Date:
2017/05/12 JD 132
Time:
15:46:54 UTC
09:46:54 -0600
Scene time:
DAY
Projection type:
MAPPED
Map projection:
1.47 km/pixel
MERCATOR
Latitude bounds:
7 N -> 24 N
Longitude bounds:
95 W -> 75 W

